

Equivalent Citations

citation codes .

Shri S. K. Singh v. Indian Space Research Organisation (Isro) .

Central Information Commission (Jan 30, 2009)

CASE NO.

No. CIC/WB/A/2007/01249-SM dated 10.07.2007

JUDGES

- Satyananda Mishra, IC

ATTORNEY

- This appeal was taken up through video-conferencing.
- The Appellant was present in person in the NIC studio at Gandhi Nagar, Gujarat
- On behalf of the Respondents, the following were present in the NIC studio at Bengaluru:
 - (i) Sh. Ramana Reddy, AA
 - (ii) Sh. Satish, CPIO
 - (iii) Sh. Joshi
 - (iv) Sh. S. K. Jha

JUDGMENT

No.CIC/WB/A/2007/01249-SM dated 10.07.2007 Right to Information Act2005 Under **Section (19) Dated 30.01.2009 Appellant: Shri S. K. Singh** Respondent: Indian Space Research Organisation (ISRO) This appeal was taken up through video-conferencing. The Appellant was present in person in the NIC studio at Gandhi Nagar, Gujarat On behalf of the Respondents, the following were present in the NIC studio at Bengaluru:

(i) Sh. Ramana Reddy, AA

(ii) Sh. Satish, CPIO

(iii) Sh. Joshi

(iv) Sh. S. K. Jha The brief facts of the case are as under.

2. The Appellant had requested the CPIO in his letter dated 23.01.2007 seeking a number of information in regard to the HBA sanctioned to various employees of the SAC. In response, the CPIO wrote to him on 05.03.2007 informing him that the information sought was not available in the format in which it had been sought and besides, the information sought could cause unwarranted invasion of the privacy of other individuals and was not connected with any public activity or interest. He rejected his request under **Section 8(1)(j) of the Right to Information (RTI) Act**. Against this, the Appellant filed an appeal before the first Appellate Authority. The First Appellate Authority decided to his case in his order dated 13.04.2007. He upheld the decision of the CPIO and rejected the appeal by relying on a number of CIC decisions. The Appellant has now approached this Commission in second appeal.

3. The appeal was heard through video conferencing. Both the Appellant and the Respondents were present and made their submissions. After carefully going through the contents of the application for information and the orders of the CPIO and the first Appellant Authority, we are of the view that the CPIO and the first Appellate Authority were not entirely correct in holding that the details of the SAC employees who had availed of HBA and whose Mortgage Deed was re- conveyed during the past 20 years could be denied as personal information the disclosure of which would invade the privacy of other individual. House Building Advance sanctioned by the Public Authority is a routine administrative function and should be clearly in the public domain. There is no reason why information regarding the names of such employees, who availed of the HBA during the past

20 years, if available, could not be given to a citizen.

4. In view of the above, we direct the CPIO to provide the list of such SAC employees who availed of HBA and whose Mortgage Deed was re-conveyed during the past 20 years. In case, the CPIO does not find all or part of the record based on which such information could be given, he should clearly state so in his reply and indicate the office guidelines or manual based on which such record had been weeded out, if at all.

5. With the above directions, the appeal is disposed off. Copies of this order be given free of cost to the parties. (Satyananda Mishra) Information Commissioner Authenticated true copy. Additional copies of orders shall be supplied against application and payment of the charges prescribed under the Act to the CPIO of this Commission. (Vijay Bhalla) Assistant Registrar